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March 6, 2025

SENATE BILL NO. 1066

By: Grellner

An Act relating to medical marijuana; amending 63 O.S. 2021, Section 427.10, as amended by Section 12, Chapter 251, O.S.L. 2022 (63 O.S. Supp. 2024, Section 427.10), which relates to physician recommendations; updating statutory language; requiring creation and maintenance of certain registry; providing certain requirements for listing on registry; requiring promulgation of certain rules; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 427.10, as amended by Section 12, Chapter 251, O.S.L. 2022 (63 O.S. Supp. 2024, Section 427.10), is amended to read as follows:

Section 427.10. A. Only licensed Oklahoma allopathic, osteopathic and podiatric physicians may provide a medical marijuana recommendation for a medical marijuana patient license under the Oklahoma Medical Marijuana and Patient Protection Act.

B. A physician who has not completed his or her first residency shall not meet the definition of "physician" under this section and any recommendation for a medical marijuana patient license shall not be processed by the Oklahoma Medical Marijuana Authority.

C. No physician shall be subject to arrest, prosecution or penalty in any manner or denied any right or privilege under state,

1 municipal or county statute, ordinance or resolution, including
2 without limitation a civil penalty or disciplinary action by the
3 State Board of Medical Licensure and Supervision, the State Board of
4 Osteopathic Examiners, the Board of Podiatric Medical Examiners or
5 by any other business, occupation or professional licensing board or
6 bureau, solely for providing a medical marijuana recommendation for
7 a patient or for monitoring, treating or prescribing scheduled
8 medication to patients who are medical marijuana licensees. The
9 provisions of this subsection shall not prevent the relevant
10 professional licensing boards from sanctioning a physician for
11 failing to properly evaluate the medical condition of a patient or
12 for otherwise violating the applicable physician-patient standard of
13 care.

14 D. A physician who recommends use of medical marijuana shall
15 not be located at the same physical address as a licensed medical
16 marijuana dispensary.

17 E. If the physician determines the continued use of medical
18 marijuana by the patient no longer meets the requirements set forth
19 in the Oklahoma Medical Marijuana and Patient Protection Act, the
20 physician shall notify the Oklahoma Medical Marijuana Authority and
21 the license shall be immediately voided without right to an
22 individual proceeding.

23 F. The Authority shall create and maintain a registry of
24 recommending physicians. Beginning January 1, 2026, to be eligible

1 to provide a medical marijuana recommendation to a licensed patient,
2 a physician shall be registered with the Authority.

3 G. To be registered with the Authority, a physician shall
4 comply with the medical education and continuing medical education
5 requirements described in this section and shall meet all other
6 requirements established by law or rule for the recommending
7 physician's respective licensure board. The medical education
8 related to medical marijuana shall be completed prior to the
9 physician being listed on the registry and shall be completed
10 annually to remain on the registry.

11 H. The Executive Director of the Oklahoma Medical Marijuana
12 Authority shall promulgate rules to establish initial medical
13 education and continuing medical education requirements for
14 recommending physicians. The State Board of Medical Licensure and
15 Supervision, the State Board of Osteopathic Examiners, and the Board
16 of Podiatric Medical Examiners may consult with the Executive
17 Director of the Authority to develop or identify a list of approved
18 medical education courses for recommending physicians.

19 SECTION 2. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

23 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
24 March 6, 2025 - DO PASS